63-355 Request for Information

63-355.1 Questionable Requests/Closed Cases

When a request for information does not appear to be reasonably related to the responsibilities of the requesting office, a written statement concerning the request and circumstances must be forwarded to the Family Resource Center (FRC) Manager for review and approval/disapproval of the request.

Inquiries from agencies and persons listed on the Authorized Disclosure List (see Section 63-354.2) on cases that have been closed and forwarded to the Record Library are to be referred to the Public Assistance Information Unit (PAI).

63-355.2 Requests from Board of Supervisors/ Other Political Entities

Most inquiries from the Board of Supervisors or other political entities are referred to Health and Human Services Agency (HHSA) Eligibility Operations, however some inquiries may be referred to the Family Resource Center (FRC) Manager or Assistant Manager for resolution. These inquiries may include:

- General requests for information on program or office procedures; or
- Requests based on complaints by an applicant/recipient pertaining to the handling of his/her case; or
- Requests based on any anonymous complaints pertaining to case handling or to a particular applicant/recipient.

The manager will respond to the inquiry or attempt to resolve the issue without releasing information concerning a specific applicant/recipient. Usually these inquiries can be handled by the manager by providing general program information or procedures.

If the request for information is about a specific applicant/recipient or the results of following up action with a specific applicant/recipient, a verbal or written consent must be provided by the applicant/recipient prior to the release of information. The only case information that may be released is information provided by or authorized by the applicant/recipient.

If the issue or result cannot be resolved, the FRC Manager or Assistant Manager will contact the Eligibility Operations CalFresh Manager for additional clarification and direction needed to respond to the inquiry.

63-355.3 Absent Parents/ Client Family or Friends

Release of information to absent parents, the applicant/recipient's family or friends requires the written consent of the applicant/recipient. In handling such requests, the following procedures must be followed:

- The worker will **not** acknowledge to the requesting person that the applicant/recipient or the applicant/recipient's child(ren) have applied for or are receiving assistance or services.
- The worker will advise the requesting person that he/she must submit a written request for any information including his/her address and phone number.
- When the worker receives the written request, he/she will notify the client of the request for information. The **applicant/recipient** may then provide the information to the requesting party.
- If the applicant/recipient does not wish to provide the information directly but will provide written authorization to release the requested information, the worker will provide the information to the requesting person. The written authorization **must** be received before any information is released and the requesting party **must** provide proof of identity before the worker provides the information.
- Should the applicant/recipient refuse consent, the information will not be released. The requesting parties may then, as appropriate, contact the District Attorney or a private attorney and use legal recourse.
- **If an absent parent alleges that the aided parent has kidnapped, abused or neglected the child(ren),** the case must be referred to Child Protective Services (CPS). The worker must report the allegation to the Child Abuse Hotline at 1-858-560-2191. The worker should also provide the absent parent with the hotline number.

63-355.4 Defense Attorneys and Businesses

The worker will refer requests from defense attorneys, including Legal Aid and the Public Defender, that do not include an applicant/recipient release, to the HHSA Subpoena Liaison, who is the PAI Supervisor, for an explanation or how to subpoena records.

Release of information to businesses is only authorized when HHSA has a written and dated authorization from the applicant/recipient. Valid business inquiries, may include grant and address information to

establish an applicant/recipient's credit, but do not include inquiries to pursue collection on a delinquent account.

63-355.5 Law Enforcement Officials

Representatives of official law enforcement agencies can receive confidential case information in specific instances. In releasing information to law enforcement the following procedures must be observed:

- All requests must be made in writing by the head of the agency or his/her designee and must specify that an arrest warrant has been issued for an applicant/recipient for the commission of a felony or misdemeanor. The request must be for an individual, unless warrants have been issued for several persons in the same case. A faxed request is acceptable.

- The disposition of each request must be documented on the written request. Documentation will include the case name, case number, name of manager, type of response and the name of the person to whom the information was released. The original request is to be maintained in a central control file by the FRC Manager. If information is released, a copy of the request is to be filed under the MISC tab in the case folder.

- Requests for information from local law enforcement agencies (i.e. Sheriff's Department, a city Police Department, Probation Department, etc.) are to the referred to the FRC Manager where the case is currently or last active. Only the FRC Manager or their designee may release information.

- Requests for information from Federal or State law enforcement agencies (i.e. Federal Bureau of Investigations (FBI), Central Intelligence Agency (CIA), U.S. Citizenship and Immigration Services (USCIS), State and Federal Parole Officers, Military Police, etc.) and any requests from other law enforcement related sources (including bounty hunters and court orders) are to be referred to the Eligibility Operations Chief of HHSA for disposition.

63-355.6 Specific Circumstances

The specific circumstances in which information may be released are detailed below:

A. CRIMINAL ACTS IMPACTING DEPARTMENT/EMPLOYEE

Confidential information about an applicant/recipient may be released

to a law enforcement agency investigating or gathering information regarding a violation of federal, state or local law committed:

- In a FRC office or other agency office;
- Against any agency or agency contracted employee when the employee was involved in the administration of public social services; or
- Against any off-duty agency or agency contracted employee in retaliation for an act performed by the employee as a job duty.

Information to be released is limited to the applicant/recipients name, physical description and address. Only site management or Eligibility Operations may release this information. (W & I Code, Section 10850)

B. OTHER CRIMINAL ACTIVITY

If an HHSA employee or contracted employee observes a client engaged in a crime in progress that is **unrelated** to the performance of the employee's duties, the employee may report the crime, but **not** release confidential information (client name, address, etc.). If further information is requested by law enforcement, contact the Eligibility Operations CalFresh Manager who will handle the request on a case-by-case basis in consultation with County Counsel.

C. DECEASED APPLICANTS/RECIPIENTS

Disclosure of information on a deceased applicant/recipient from a CalFresh only case record is strictly prohibited.

D. FELONY AND/OR MISDEMEANOR ARREST WARRANTS

Confidential information from case records will not be protected from disclosure to a law enforcement agency should a felony and/or misdemeanor arrest warrant be issued in the client's name.

63-355.7 Private Organizations / Persons

Private organizations and individuals not on the authorized disclosure list who request case information, including whether or not a person is receiving or has received aid, must be informed about the regulations regarding confidentiality of case records.

No case information is to be released without the written authorization of the client.

If the inquiry is not case specific, often general statistics or specific program information can resolve the inquiry. Inquiries about general statistical information are to be referred directly to the FRC Manager.

All media inquiries are to be referred directly to the site manager who, when necessary, will refer the media to the HHSA Media Coordinator.

63-355.8 Other Requests

Confidentiality questions or requests for release of information not specifically addressed in this chapter should be referred to FRC management for review.

Unauthorized disclosure of confidential information may render the County and/or staff liable for criminal and civil suits.
